



## **Order under Section 21.2 of the Statutory Powers Procedure Act and the Residential Tenancies Act, 2006**

**Citation:** Mellin v Gourlay, 2025 ONLTB 98064

**Date:** 2025-12-29

**File Number:** LTB-L-080244-24-RV

**In the matter of:** 48 Paterson Street  
Collingwood ON L9Y3N2

**Between:** Dan R Mellin Landlord

**And**

Jeremy Gourlay Former Tenant

### **Review Order**

Dan R Mellin (the 'Landlord') applied for an order requiring Jeremy Gourlay (the 'Former Tenant') to pay the rent and daily compensation that the Former Tenant owes.

This application was resolved by order LTB-L-080244-24 issued on October 21, 2025.

On December 1, 2025, the Former Tenant requested a review of the order and that the order be stayed until the request to review the order is resolved.

On December 2, 2025 interim order LTB-L-080244-24-RV-IN was issued, staying the order issued on October 21, 2025.

The review request was heard by videoconference on December 16, 2025.

The Landlord, the Former Tenant and the Former Tenant's legal representative, Erli Bregu, attended the hearing.

### **Determinations:**

1. For the following reasons, I find that the Tenant's request for review must be denied. I am not satisfied that the Tenant was not reasonably able to participate in the hearing that took place on September 3, 2025.
2. At the review hearing, there arose a dispute regarding whether the Landlord properly served the Tenant with the notice of hearing for the September 3<sup>rd</sup> hearing. The parties agree that the Landlord sent the notice of hearing by courier to 355629 The Blue Mountains Euphrasia Townline. The Tenant says he did not receive the notice of hearing because his mailing address is 355639 The Blue Mountains Euphrasia Townline.

3. At the review hearing, this issue became more convoluted as the Tenant initially said “the address the notice was sent to is a property that I own but nobody lives there” but then said he used to live there with his ex-spouse. The Landlord says that he sent the notice of hearing to this address because the Tenant provided this address to him on his rental application and used this address, which apparently is multi-million-dollar property, to help “bolster his references” and secure his application for the rental unit.
4. In any case, the issue of service of the notice of hearing is irrelevant here because the Tenant readily admitted at the outset of the review hearing that he was well aware of the hearing date, time and VC line for the September 3<sup>rd</sup> hearing because he gained access to the Board’s portal and obtained this information on the portal well in advance of the hearing. The Tenant repeated this admission several times during the review hearing, but also said he failed to attend the hearing because he did not know how to access the virtual hearing. Based on the Tenant’s own admission, and regardless of any alleged service problems by the Landlord, I am satisfied that the Tenant was aware of the September 3<sup>rd</sup> hearing date, time and location. The problem here is the Tenant’s failure to properly act on that information.
5. The Tenant says he failed to attend the September 3<sup>rd</sup> hearing because he did not know how to access the hearing. This is despite the fact that the Tenant admitted at the outset of the review hearing that he actually read the information in the notice of hearing package, but he later changed his testimony and said that he never actually saw the notice of hearing package. The Tenant gave detailed testimony at the review hearing about how he had limited internet access prior to the hearing and was living in his vehicle. However, the Tenant does not dispute that he had a functional phone on the day of the hearing and used this phone to call the Board. The Tenant’s main point at the review hearing is that he did not know the phone number to call to access the September 3<sup>rd</sup> hearing.
6. The problem with the Tenant’s testimony is not just that it was inconsistent on this point, but his explanation simply makes no sense in light of all of the other steps he took prior to the September 3<sup>rd</sup> hearing. For example, the Tenant admits that he had constant access to the Board’s portal and even uploaded his own evidence to the portal in preparation for the September 3<sup>rd</sup> hearing. The Tenant says that he attempted to call the Board on the morning of the hearing to get instructions about how to access the virtual hearing room but he was placed on hold and never got through to a representative. The Tenant says he attempted to send a text message to the Landlord’s wife on the morning of the hearing to ask her how to join the virtual hearing, but she had retired and the phone number he had was no longer current. In short, the Tenant says he took all the steps he could think of to gain access to the September 3<sup>rd</sup> hearing but was simply unsuccessful. I do not find this explanation to the reasonable.
7. While I am satisfied that the Tenant took all of the steps he describes, the problem is that he failed to take the most obvious and easy step; he could have easily viewed the notice of hearing package on the portal which clearly gives the phone number to call to access the hearing as well as various resources for help and support with accessing the virtual hearing room. In fact, the Tenant could have viewed this PDF document with one click on the portal and this step would have provided him with all of the information he needed to attend the September 3<sup>rd</sup> hearing. I simply do not find it reasonable that the Tenant failed to take this obvious and simple step to attend the September 3<sup>rd</sup> hearing.

8. I am making this finding even though, at the review hearing, the Tenant blamed his mental health challenges for his “inability to follow through” on tasks. However, the Tenant provided no medical evidence to support his testimony that he has mental health challenges which negatively impact his ability to follow through on tasks. I also find that the Tenant’s testimony on this point is undermined by his own pattern of behaviour; he followed through with gaining access to the portal, he followed through with loading his own evidence onto the portal, he followed through with contacting the Board (albeit very late in the process) and followed through with attempting to contact the Landlord’s wife. These efforts constitute multiple examples of the Tenant making a plan and then taking the steps to follow through with that plan. I am therefore not satisfied on the balance of probabilities that there is a nexus between the Tenant’s alleged mental health struggles and his failure to “follow through” and view the notice of hearing on the portal.
9. Instead, I find it compelling that, later in the review hearing and when discussing the September 3<sup>rd</sup> hearing, the Tenant admitted that he “wished I had taken it more seriously”. The Tenant offered this comment spontaneously at the hearing and without prompting from either myself or his legal representative. This suggests to me that the Tenant’s testimony on this point is credible and his failure to take the September 3<sup>rd</sup> hearing more seriously is the actual reason he failed to attend the hearing. However, the Tenant’s failure to take the hearing seriously does not justify reviewing the order issued on October 21, 2025.
10. In considering the Tenant’s request for review, I am guided by the principles outlined in Guideline 8 of the Board’s *Interpretation Guidelines* which says,

The **LTB will refuse requests** where the requestor's absence was the result of negligence or **it finds no reasonable explanation for the failure to attend**. *1474367 Ontario Inc. v. Millien*, 2011 ONSC 1563; *TSL-67802-15-RV(Re)*, 2016 CanLII 1738 (ON LTB); *NOL-08906-12-RV (Re)*, 2012 CanLII 59993 (ON LTB); *TNL-19146-11-RV (Re)*, 2011 CanLII 71522 (ON LTB). [Emphases added]

11. While I am not bound by the principles set out in the Guidelines, I see no reason to depart from these principles in this instance.
12. Based on the Tenant’s own admission, I find that the Tenant has failed to provide a reasonable explanation for his failure to attend the hearing on September 3, 2205. The Tenant knew the date, time and location of the hearing but simply chose not to take one additional step to find out the phone number to call to attend the hearing. I am not persuaded that there is a nexus between the Tenant’s alleged mental health concerns and his failure to take this simple step. The fact that the Tenant gained access to the portal, found out about the hearing on the portal, and loaded his own evidence onto the portal undermines his credibility when he says he did not know how to view the notice of hearing information.
13. In short, I am not satisfied that the Tenant has provided a reasonable explanation for failing to attend the September 3<sup>rd</sup> hearing. For these reasons, and based on the evidence before me, I am not satisfied that the Tenant was not reasonably able to participate in the September 3<sup>rd</sup> hearing or that there was a serious error in the proceeding. This means the Tenant’s review request must be denied.

**It is ordered that:**

1. The request to review order LTB-L-080244-24 issued on October 21, 2025 is denied. The order is confirmed and remains unchanged.
2. The interim order issued on December 2, 2025 is cancelled. The stay of order LTB-L-080244-24 is lifted immediately.

**December 29, 2025**

**Date Issued**

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Laura Hartslief

Member, Landlord and Tenant Board

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If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

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